

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

March 27, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case [leaving the meeting at 8:30 p.m.], Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Scott Roybal, Dicky Shanor and Jeff White. Absent: Dr. Mark Rinne. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Roybal, and pursuant to support received by Mr. Johnson and Mr. White, Agenda Item #14 (a) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. Johnson. Motion carried. Voting “yes” -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on March 13, 2017. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meetings of the Governing Body on March 2, March 6, March 8, March 10 and March 14, 2017. Motion (per Consent Agenda) carried.

Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Case. Mr. Roybal and Mr. Johnson each declared a conflict of interest (business and personal interest in vouchers payable to Tyrrell Chevrolet and Mr. Johnson respectively) and vacated Council Chambers. Upon inquiry, Mayor Orr provided information on a voucher payable to Align (strategic planning session costs). Motion carried. Voting “yes” -- all members of the Governing Body present in Council Chambers. Following announcement of the vote, Mr. Roybal and Mr. Johnson returned to Council Chambers.

ORDINANCE – 2nd READING – Creating the Civic Center Commons Project Management Team and providing procedures for the operation thereof. Mayor Orr provided information on the project generally, and Mr. White reported, on behalf of the ordinance sponsors, on the purpose and intent of the ordinance. Offering extensive information on the project, including the West Edge, Capitol Basin and affiliated 19th St. and 26th drainage projects; flood control; FEMA grant requirements and reviews, and cost based analysis were Jim Voeller, City Engineer, and Gene MacDonald, Ayres Associates. During comments, Mr. Voeller referred to a map display of the project area, and Mr. MacDonald distributed a packet of information titled Environmental Summary (on file with City Clerk’s office). Commenting on the Civic Center Commons Project and the West Edge Project overall; revitalization of the area and/or

development of the park, which is the community environment amenity portion of the project; flood control and FEMA grant requirements were: Eric Trowbridge; Dale Strickland, Western Ecosystems Technology, Inc.; Sara Burlingame; Phillip Trefren; Barbie Harrington; Dean Dexter, co-owner of Warehouse Twenty One; Lea Bain; Mike Morris; Rachel Ratliff; Brad Harrington; Will Dinneen; Howard Rodack; Danielle Marks; Carrie Hufney and Jennie Anderson. Following a 10 minute recess, Mayor Orr reconvened the meeting. Reporting for Public Services Committee, Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Chief Brian Kozak, Police Department; Sylvia Hackl, City Attorney, and Mr. Voeller responded to inquiries involving the FEMA grant and alleged application misrepresentations, and Matthew Whipple, DHM Design, explained his firm's involvement in the West Edge conceptual design. Discussion topics included: FEMA grant application information and reviews; past and current staff involvement; outside professional services for the project; clarification that the ordinance pertains to formation of a project management team (PMT), and concerns with wording contained in the proposed ordinance relative to the PMT's responsibilities and authority vs. City staff. Upon inquiry to City Council members and there being no objection voiced, Mayor Orr provided additional information on project funding sources, FEMA grant status and the time frame involved for use of the grant funds. Motion carried. Voting "yes" -- all members of the governing body present. [City Clerk note: Following announcement of the vote, Mr. Case excused himself from attendance for the remainder of the meeting]

ORDINANCE – 2nd READING – Amending various chapters and sections contained in Title 5, Business Licenses and Regulations, and Title 8, Health and Safety, of the Cheyenne City Code, pertaining to approval and issuance of certain business licenses and permits. Reporting for Finance Committee, Mr. Luna moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE – 2nd READING - An Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from CB Community Business to LI Light Industrial for a portion of Block 1 Tyrrell Addition; and a portion of Block 1 Husky Industrial Addition First Filing being situated in a portion of the West ½ Section 1, T13N, R67W, of the 6th Principal Meridian, Cheyenne, Wyoming (located along Cutler Road north of West Lincolnway). Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE – 2nd READING – An Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD – Planned Unit Development District, of the Unified Development Code, changing the zoning classification from HR-1 High Density Residential to PUD Planned Unit Development for a portion of Lot 2, Block 1 of Buffalo Ridge Estates 10th Filing, City of Cheyenne, Laramie County, Wyoming (located west of and adjacent to Sunflower Road, south of Sagebrush Ave.). Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] RESOLUTION – Authorizing the City of Cheyenne to re-acquire the real property located at 206 West Lincolnway, Cheyenne Wyoming – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Tyrrell Addition, 2nd Filing, a replat of a portion of Lot 9, Block 3, Replat of Westland Subdivision; a portion of vacated and abandoned State Highway U.S. Hwy 30 and a portion of Block 1, Husky Industrial Addition First Filing and Block 1, Tyrrell Addition being situated in a portion of the West ½ Section 1, T13N, R67W, of the 6th Principal Meridian, Laramie County, Wyoming (located along Cutler Road, north of West Lincolnway) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

Recommendation by the Governing Body to approve the Sunflower Road Planned Unit Development Preliminary Plan for a portion of Lot 2, Block 1 of Buffalo Ridge Estates 10th Filing, City of Cheyenne, Laramie County, Wyoming (located west of and adjacent to Sunflower Road, south of Sagebrush Ave.). It was noted the reason for removing the item from the Consent Agenda was to provide clarification that, under UDC provisions, action on a PUD preliminary plan requires three readings before the governing body. Mr. Roybal moved to acknowledge the Planning Commission's recommendation to approve, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Lease Agreement between the City of Cheyenne, Wyoming, and Eco-Site, Inc., to lease City-Owned property for a tower compound for communications and related purposes, and for an access and utility easement to access the tower compound. Motion (per Consent Agenda) carried. (#6632)

[CA] Memorandum of Understanding between the City of Cheyenne, Wyoming, and Raymond W. Martin, for the acquisition of easements for the construction of a portion of Christensen Road to be designated as a principal arterial. Motion (per Consent Agenda) carried (amount not to exceed \$42,240.00). (#6633)

[CA] Memorandum of Understanding between the City of Cheyenne, Wyoming, and WJE, LLC, for the acquisition of easements for the construction of a portion of Christensen Road to be designated as a principal arterial. Motion (per Consent Agenda) carried (amount not to exceed \$96,320.00). (#6634)

[CA] Professional Services Agreement between the City of Cheyenne Metropolitan Planning Organization and Kimley-Horn and Associates for the Reed Avenue Rail Corridor Plan (MPO funds). Motion (per Consent Agenda) carried (amount not to exceed \$119,773.00). (#6635)

[CA] Professional Services Agreement between the Cheyenne Metropolitan Planning Organization and Ayres Associates for the Sun Valley Greenway Connector 35% Design Plan (MPO funds). Motion (per Consent Agenda) carried (amount not to exceed \$39,688.00). (#6636)

[CA] Professional Services Agreement between the City of Cheyenne and HollyFrontier Cheyenne Refining LLC for designation of the title sponsorship of Superday and the Tour de Prairie events. Motion (per Consent Agenda) carried (revenue to City in the amount of \$25,000.00). (#6637)

[CA] Agreement between the City of Cheyenne, Laramie County Sheriff's Department and Laramie County, Wyoming, for housing City prisoners at the Laramie County Detention Center – referred to Finance Committee.

[CA] Juvenile Housing Agreement between Laramie County and the City of Cheyenne for the housing of juvenile detainees in the Laramie County Juvenile Services Center located at the Archer Complex – referred to Finance Committee.

[CA] Consideration of Bid #E-15-17 for the City's annual purchase of "Aggregates" (2015 - 2018 1% Sales Tax). Motion (per Consent Agenda) carried (approved bid submitted by JTL Group, Inc., d/b/a Knife River, Cheyenne, in the amount of \$31,250.00).

[CA] Consideration of Bid #E-16-17 for the City's annual purchase of "Hot Mix, Tack Oil, and Cold Mix" (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (approved bid submitted by JTL Group, Inc., d/b/a Knife River, Cheyenne).

[CA] Consideration of Bid #E-11-17 for furnishing three 20 passenger Transit vehicles and one 12 passenger Transit vehicle for the City's Transit Division. (FTA Transit Development Grant). Motion (per Consent Agenda) carried (approved bid submitted by Creative Bus Sales, Inc., Chino, CA, in a total amount of \$415,879.00).

Appointment of Frank Gerstenkorn to the Personnel Commission. Mr. Luna moved to approve, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Orr who did not vote (mayoral appointment).

[CA] Request to approve an additional dispensing room for City of Cheyenne restaurant liquor licensee Bella Fuoco, LLC, d/b/a Bella Fuoco, located at 2115 Warren Avenue, Cheyenne, Wyoming – referred to Finance Committee.

Announcement of Public Hearing to be held April 10, 2017 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for retail liquor license transfer of ownership application filed with the City Clerk's Office for Evergreen Restaurant LLC 5011, d/b/a Outback Steakhouse #5011, 1626 Fleischli Parkway, Cheyenne, Wyoming (License currently held by Outback Steakhouse of Florida, LLC, d/b/a Outback Steakhouse, 1626 Fleischli Parkway, Cheyenne, Wyoming).

Announcement of Public Hearing to be held April 10, 2017 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a retail liquor license transfer of ownership application filed with the City Clerk's Office for Deep South, LLC, d/b/a Redwood

Lounge, 2105 East Lincolnway, Cheyenne, Wyoming (License currently held by High Plains Entertainment, Inc., d/b/a Redwood Lounge and Package Liquor, 2105 East Lincolnway, Cheyenne, Wyoming).

Announcement of Public Hearing to be held April 10, 2017 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a restaurant liquor license application filed with the City Clerk's Office for Wing Shack Enterprises, Inc., d/b/a Wing Shack, 1439 Stillwater Avenue, Units 1 and 2, Cheyenne, Wyoming.

Announcement of Public Hearing to be held April 10, 2017 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exists for a parcel of land situate in the NW ¼ of Section 21, T.14N., R.66W. of the 6th P.M., Laramie County, Wyoming (located northwest of the intersection of Point Bluff and Crane Bluff).

There being no further business to come before the governing body, the meeting was officially adjourned at 8:37 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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